ZODWA SIMBI
versus
MUSIYIWA SILAS PARADZA

HIGH COURT OF ZIMBABWE
TAKUVA J
HARARE, 20 November 2025 & 17 June 2026

Opposed Court Application

E Mandipa, for the applicant
P Nyeverai, for the respondent

TAKUVA J: This is an application for rescission of judgment brought in terms of r 27 of the High Court Rules, 2021 ("the High Court Rules"). The applicant seeks the setting aside of a judgment granted by this court under case number HCH 1980/24 in the applicant's absence. The applicant seeks the following order:

1. The application for rescission of default judgment be and is hereby granted.
2. The default judgment granted under Case No. HCH 1980/24 be and is hereby rescinded.
3. The first respondent in Case No. HCH I980/24 be and is hereby granted leave to defend the appeal.
4. The respondent to pay costs of this suit.

BACKGROUND FACTS

The applicant and the respondent were parties to interdict proceedings instituted in the Gweru Magistrates Court under case number GWGL 463/24. On 19 February 2024, the applicant approached the magistrates court seeking an interdict against the respondent and one Dzingai Kudanga. The respondent opposed the application and, after hearing the matter, the magistrates court handed down a ruling on 23 April 2024 in favour of the applicant.

The applicant was represented in the magistrates court proceedings by Mutatu and Mandipa Legal Practice of Gweru. The applicant avers that subsequent to the conclusion of

the proceedings, the law firm changed its name to Mandipa, Makwara & Chikukwa Legal Practice sometime in September 2024.

Following the granting of the interdict, the respondent noted an appeal to this court under case number HCH 1980/24 against the magistrates court judgment. The appeal was subsequently heard by this court in the absence of the applicant and an order was granted allowing the appeal and setting aside the judgment of the court *a quo.*

The applicant avers that she only became aware of the existence of the appeal judgment on 25 April 2025 during contempt of court proceedings instituted against the respondent. According to the applicant, the respondent, through his legal practitioner, produced the High Court order allowing the appeal as a basis for challenging the contempt proceedings. The applicant thereafter instructed her current legal practitioners to obtain copies of the appeal order and the notice of appeal from the Registrar of this Court.

The applicant contends that she was never served with the notice of appeal, the appellant's heads of argument or the notice of set down in the appeal proceedings. She further contends that the notice of appeal and subsequent court process were served on her erstwhile legal practitioners despite the fact that they no longer had a mandate to represent her in the appeal proceedings. The applicant therefore avers that her non-appearance at the appeal hearing was not wilful but was occasioned by lack of notice of the proceedings.

On the other hand, the respondent opposes the application and raises, *in limine*, the point that this court is *functus officio* on the basis that the appeal in case number HCH 1980/24 was heard and determined on the merits. The respondent further contends that the application for rescission was filed out of time and that the applicant had knowledge of the appeal proceedings well before April 2025. In support of this contention, the respondent relies on supplementary heads of argument allegedly filed by the applicant in another matter, case number HCB 569/24, wherein reference was made to the appeal against the magistrates court judgment.

The respondent maintains that the applicant's legal practitioners were duly served with the notice of appeal and that they never renounced agency. According to the respondent, the applicant deliberately failed to participate in the appeal proceedings despite being aware of the appeal. The respondent further contends that the appeal was determined on the merits after argument by counsel and that no default judgment was granted.

The applicant now approaches this court in terms of r 27 of the High Court Rules seeking rescission of the judgment granted in case number HCH 1980/24. The applicant contends that there is good and sufficient cause for rescission on the basis that she was not in wilful default and that she has *bona fide* defences to the appeal with prospects of success. The respondent disputes the existence of any such good cause and prays for dismissal of the application with costs on a legal practitioner and client scale.

THE POINT *IN LIMINE*

It should be noted that on the day of the hearing Mr *Nyeverai* for the respondent, advised the court that the respondent would only pursue the issue on *functus officio.* The court shall proceed to determine this issue first and thereafter if need be proceed to the merits of the matter.

The respondent raised a point *in limine* to the effect that this court is *functus officio* and therefore lacks jurisdiction to entertain the present application. The respondent's argument is that the appeal under case number HCH 1980/24 was heard and determined on the merits and that this court, having pronounced a final judgment, cannot revisit its own decision. It was further argued that the applicant's remedy, if aggrieved by the judgment, lies in the Supreme Court.

Rule 27 of the High Court Rules expressly empowers this court to rescind or vary a judgment granted in default upon good and sufficient cause being shown. The rule constitutes a recognised exception to the *functus officio* doctrine. Consequently, where a litigant approaches the court seeking rescission of a judgment allegedly granted in default, the court retains jurisdiction to inquire into whether the requirements for rescission have been satisfied.

The respondent's contention that the appeal was determined "on the merits" does not, without more, dispose of the matter. The critical issue is whether the applicant was in default of appearance and whether such default occurred in circumstances entitling the applicant to seek rescission under r 27. The applicant alleges that she was never personally served with the notice of appeal, the appellant's heads of argument and the notice of set down, and that the processes were directed to legal practitioners who allegedly no longer had a mandate to act on her behalf. If established, those allegations bring the matter squarely within the ambit of rescission proceedings contemplated by r 27.

Moreover, the doctrine of *functus officio* does not operate so rigidly as to prevent a court from correcting or revisiting proceedings where the rules of court expressly confer such

power. To uphold the respondent's objection would effectively render r 27 nugatory in matters where judgments are alleged to have been granted in default.

I am therefore satisfied that this court is properly seized with jurisdiction to entertain the present application for rescission. The respondent's point *in limine* based on *functus officio* accordingly fails and is hereby dismissed. The court shall proceed to deal with the merits of the matter.

ANALYSIS

The following issues fall for determination by this court:

1. Whether the applicant has provided a reasonable explanation for her default in the appeal proceedings under case number HCH 1980/24.
2. Whether the applicant has demonstrated a *bona fide* defence to the appeal with prospects of success.

Whether the applicant has provided a reasonable explanation for the default

The applicable principles governing rescission of judgment are settled. In *Stockil* v *Griffiths* 1992 (1) ZLR 172 (S), the Supreme Court held that in determining whether good and sufficient cause has been shown, the court considers the reasonableness of the explanation for the default, the *bona fides* of the application, and the existence of a *bona fide* defence carrying prospects of success. These factors are not to be considered in isolation but cumulatively.

The applicant contends that she was never served with the notice of appeal, the appellant's heads of argument, or the notice of set down in case number HCH 1980/24. Her case is that the appeal processes were directed to Mutatu and Mandipa Legal Practice, legal practitioners who had represented her in the proceedings *a quo,* but whose mandate had terminated upon conclusion of the magistrates court proceedings.

The respondent argues that the applicant had knowledge of the appeal and relies heavily on allegations that the applicant referred to the appeal in another matter under case number HCB 569/24. However, no proof of service of the notice of appeal or notice of set down upon the applicant personally was placed before the Court. Equally absent from the record is proof that the erstwhile legal practitioners accepted service on behalf of the applicant in the appeal proceedings or that they had continuing instructions to act in the appeal.

An appeal constitutes a separate proceeding from the matter in the court *a quo*. The mere fact that legal practitioners represented a litigant in proceedings before the magistrates court does not automatically clothe them with continuing authority to represent the litigant in subsequent appellate proceedings. In the absence of proof of continuing mandate, service upon such legal practitioners becomes questionable.

The respondent further argued that the applicant ought to have linked herself to the matter on IECMS. That argument is misplaced. The duty to ensure proper service of initiating process rests upon the litigant instituting the proceedings. The burden could not shift to the applicant to search for proceedings of which she alleges she had no proper notice.

The respondent also argued that the applicant had knowledge of the appeal by October 2024. However, even assuming such knowledge existed, mere knowledge of the existence of an appeal is not equivalent to proper service of court process or notice of hearing. The respondent was still obliged to ensure proper procedural compliance. I am satisfied that the applicant's explanation for the default is reasonable and cannot be characterised as wilful disregard of the court process.

The applicant attacks the validity of the notice of appeal itself. The principal argument advanced is that the notice of appeal cited the judgment appealed against as having been handed down on "23rd and 24th of April 2024" whereas the judgment of the magistrates court was handed down on 23 April 2024 only.

Order 31 r 4 of the Magistrates Court (Civil) Rules, 2019 provides that a notice of appeal "shall state" the date of judgment appealed against. The wording of the rule is couched in peremptory terms.

In *Martin Jongwe* v *National Foods Ltd & Anor* S-33-21, the Supreme Court confirmed that failure to cite the correct date of judgment appealed against invalidates the notice of appeal. Similarly, in *Sambaza* v *Al Shams Global BVI* S-3-18, the Court reiterated that where mandatory requirements relating to notices of appeal are not complied with, the notice becomes fatally defective.

The respondent sought to downplay the defect as merely technical. I am unable to agree. A notice of appeal is a jurisdictional document. Compliance with mandatory procedural requirements is not optional. The authorities cited by the applicant establish that the correct identification of the judgment appealed against is essential. The applicant further submitted that the judgment *a quo* was handed down on 23 April 2024 only, as reflected in the signed ruling of the presiding magistrate. Reliance was placed on *Innocent Kadungure* v

Cherily Chandi Kadungure SC 19/07, where the Supreme Court explained that the "date of judgment" means the date on which the judgment is delivered or handed down and not any other date. The applicant argued that the citation of the judgment as having been handed down on "23rd and 24th April 2024" constituted non-compliance with the mandatory requirements of Order 31 r 4 of the Magistrates Court (Civil) Rules, 2019. The applicant further relied on *MacFoy* v *United Africa Co Ltd* [1961] 3 All ER 1169 (PC) and *Muchakata* v *Netherburn Mine* 1996 (1) ZLR 153 (S) for the proposition that where a process is a nullity, everything founded upon it is equally invalid. These submissions reinforce the seriousness of the challenge mounted against the competence of the notice of appeal.

The applicant further challenged the grounds of appeal as prolix, vague, argumentative and not properly directed at findings of fact or rulings of law made by the court *a quo.* A reading of certain grounds of appeal indeed reveals drafting deficiencies. Ground 4, for instance, is inelegantly framed and lacks precision. Certain grounds also contain argumentative material more appropriate for heads of argument than for a notice of appeal. The applicant pointed to specific examples within the notice of appeal. It was submitted that certain grounds contained lengthy subparagraphs and argumentative material ordinarily reserved for heads of argument. Ground 4, in particular, was criticised as vague and embarrassing in that it merely alleged that "the court *a quo* grossly erred at law in making a finding that", without identifying the impugned finding with sufficient precision. The applicant further argued that some grounds were not directed at actual findings of fact or rulings of law made by the magistrates' court. By way of example, ground 1 criticised the court *a quo* for allegedly finding that there were material disputes of fact, whereas the applicant contended that no such finding had been made. These complaints lend further support to the argument that the notice of appeal may not satisfy the requirements of concision, clarity and precision required of appellate process.

The authorities cited by the applicant, including *Sonyongo* v *Minister of Law and Order* 1996 (4) SA 384 and *Kunonga* v *Church of the Province of Central Africa* S-25-17, underscore the requirement that grounds of appeal must clearly and succinctly identify the findings challenged and the basis upon which they are alleged to be wrong.

Without making definitive pronouncements on the ultimate validity of every ground of appeal, I am satisfied that the applicant has raised serious and arguable issues concerning the competence of the notice of appeal. These are not frivolous defences. They constitute *bona fide* points carrying prospects of success.

The applicant additionally raised concerns regarding the relief sought in the notice of appeal, particularly the prayer relating to costs. It was submitted that the notice of appeal sought an order that the "1st Respondent" be ordered to pay costs on a higher scale. The applicant pointed out that the person described as the first respondent in the proceedings *a quo* was in fact the appellant himself in the appeal proceedings. The criticism advanced was that the prayer effectively sought an order for costs against the appellant himself, thereby creating uncertainty and confusion regarding the relief sought. While the respondent sought to dismiss the defect as inconsequential, the criticism further illustrates the lack of precision in the drafting of the notice of appeal. As submitted by the applicant, pleadings and court process must be drafted with sufficient clarity to enable both the opposing party and the court to understand the exact relief being sought.

Taken cumulatively, the applicant has established a *bona fide* defence carrying reasonable prospects of success.

There is nothing before the court suggesting that the application was brought merely to delay the respondent or to abuse court process. To the contrary, the applicant moved with relative promptitude upon obtaining the appeal order during the contempt proceedings.

The applicant further maintained that the application was motivated by a genuine desire to ventilate the dispute on the merits. It was argued that the applicant had never been afforded an opportunity to oppose the appeal because she was not properly served and was consequently absent when the appeal was heard. The applicant characterised the judgment obtained in the appeal proceedings as a judgment obtained in default and submitted that rescission was therefore the appropriate procedural remedy. Reliance was placed *on Josphat Kudumba & Ors* v *Apatron Mining (Pvt) Ltd & Ors* SC8/23, *Zvinavashe* v *Ndlovu* 2006 (2) ZLR 372 (S) and *Guoxing Gong* v *Mayor Logistics (Pvt) Ltd & Anor* SC 2/17, which confirm that the proper recourse against a default judgment is ordinarily an application for rescission.

The respondent argued that the matter was determined on the merits. That submission overlooks the reality that the applicant was absent and unrepresented at the hearing of the appeal. The court heard only one side of the dispute. As correctly submitted by the applicant, a judgment granted in circumstances where one party is absent after default falls within the realm of a default judgment for purposes of rescission proceedings.

The applicant further submitted that a default judgment is not a determination reached after the full ventilation of issues by both sides. Reliance was placed on *The Sheriff of the High Court* v *EduLoan & Anor* HB-150-18, where it was observed that a defaulting party

loses by reason of the default and not because the merits of that party's case have been adjudicated upon after hearing both sides. This submission lends support to the applicant's contention that the issues presently raised have never been judicially determined on their merits.

The courts have consistently leaned in favour of resolving disputes on their merits where justice so demands. The right to a fair hearing protected under s 69 of the Constitution further militates against shutting out a litigant who has demonstrated absence of wilful default and the existence of an arguable defence. The applicant also invoked the constitutional guarantee of a fair hearing under s 69 of the Constitution and argued that she had been deprived of an opportunity to participate in the appeal proceedings despite being entitled to notice thereof. In the circumstances of this case, where there is no satisfactory proof of service and where substantial questions have been raised regarding the validity and competence of the appeal process itself, the interests of justice favour allowing the dispute to be fully ventilated with both parties properly before the court. In all the circumstances, I am satisfied that the application for rescission is bona fide.

DISPOSITION

Having considered the matter in its totality, I am satisfied that the applicant has established good and sufficient cause for rescission of the judgment granted in case number HCH 1980/24. The applicant has provided a reasonable explanation for her default, has demonstrated *bona fide* defences carrying prospects of success, and has approached the court genuinely seeking an opportunity to be heard on the merits. The interests of justice favour the ventilation of the dispute with both parties properly before the court.

ORDER

Accordingly, it is ordered that:

1. The application for rescission of default judgment be and is hereby granted.
2. The default judgment granted under Case No. HCH 1980/24 be and is hereby rescinded.
3. The first respondent in Case No. HCH I980/24 be and is hereby granted leave to defend the appeal.
4. The respondent to pay costs of this suit.

TAKUVA J:……..

Mandipa Makwara and Chikukwa Legal Practice, applicant's legal practitioners
Mavhiringidze & Mashanyare Legal Practitioners, respondent's legal practitioners